



DECISION

Complaint No. : POS/3817/2023

Name and address of the complainant : Mr. Ali Nawaz Mallah S/o Aaro Mallah,
C/o Majeed Mallah Kiryana Store, Kadhan,
District Badin

Name of the Agency Complained against : Irrigation Department

Name & Designation of Investigating Officer : Abdul Wahab Memon,
Regional Director, Badin

Vetted by : Fasihuddin Khan,
Advisor 'Z'

Subject : COMPLAINT AGAINST IRRIGATION DEPARTMENT
REGARDING DELAY IN RESTORATION OF WATER
COURSE NO.4/L, NOOR WAH MINOR, DISTRICT
BADIN AS PER ITS ORIGINAL DIMENSIONS/LINES

COMPLAINT

Mr. Ali Nawaz Mallah filed a complaint on 23.05.2023 regarding delay in restoration of water course No. 4/L, Noor Wah Minor as per its original dimensions. Clarifying the issue he stated that taking the advantage of recent floods some of the zamindars had modified the dimensions of the said water course as per their convenience. Aggrieved by that, he solicited intervention of this Institution.

PROCEEDINGS

2. The complaint was admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) by condoning the delay and after receiving mandatory Affidavit on Form 'A' alongwith other relevant documents for investigation.

3. The matter was taken up with the Executive Engineer, Akram Wah Division vide letter dated 20.07.2023 followed by several reminders for report.

After constant follow up correspondence and hearing the parties on 30.01.2025, the concerned Canal Assistant of the Irrigation Department, Badin appeared on 18.02.2025 and submitted the report of the Assistant Executive Engineer, Kazia sub-Division, Badin vide letter dated 04.02.2025 stating that the issue under the complaint pertained to the shifting of water course No.4-L, ex-Noor Wah Minor from its sanctioned point to 100 feet below. The complainant was not owner/khatedar of the said water course and had malafide intention to occupy the Government Bhadda land which was passing adjacent to the complainant's land.

Upon the receipt of rejoinder, the Assistant Executive Engineer, Kazia sub-division, Badin reported vide letter dated 29.07.2025 that the site visit was carried out alongwith the complainant and the water course # 4-L had been fully restored to its original sanctioned alignment. The complainant also acknowledged that the water course had been correctly aligned and completed as per record. The statement of Ali Nawaz Mallah and others to that effect was also enclosed as evidence.

The report of the Agency was sent to the complainant for rejoinder vide letter dated 01.08.2025 followed by three reminders but he did not respond.

FINDING

4. It seems that the complainant has lost his interest to proceed further in the matter after resolution of his problem. Hence no further action is required.

DECISION

5. In view of the above and in exercise of powers vested in me u/s 11 of Establishment of the Office of Ombudsman for Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as redressed.

Given under my hand and seal of Office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz - PAS
Ombudsman, Sindh

Karachi, dated

21st November, 2025